

HOUSE BILL 1159

By Lynn

AN ACT to amend Tennessee Code Annotated, Title 2,
relative to voter registration.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 2-2-116, is amended by adding the following as new language on the permanent registration record when a person registers to vote:

Political Party Affiliation _____

SECTION 2. Tennessee Code Annotated, Section 2-2-118, is amended by adding the following as a new subsection:

(e) At the time of initial registration or during the registration period under § 2-2-109, each qualified voter may designate on the registration application an affiliation with a political party qualified to participate in primary elections or may designate to be designated as "Unaffiliated." The county election commission shall record the party affiliation or unaffiliated designation as part of the voter's permanent registration record. If a voter fails or refuses to make a designation, the county election commission shall enter on the permanent registration records that the voter is unaffiliated.

SECTION 3. Tennessee Code Annotated, Section 2-1-104(a), is amended by adding the following as a new subdivision:

() "Unaffiliated voter" means a voter who is not affiliated with a statewide political party or recognized minor political party and who has no political party preference.

SECTION 4. Tennessee Code Annotated, Section 2-7-115(b)(2), is amended by deleting the subdivision and substituting instead:

(2) It is the first primary election the voter has voted in after the effective date of this act, and at the time the voter seeks to vote, the voter declares allegiance to the political party in whose primary the voter seeks to vote and states that the voter intends to affiliate with that party. The county election commission shall record the voter's declaration or affirmation made at the time the voter seeks to vote as part of the voter's permanent registration record. Once recorded, such declaration may be changed by the voter in accordance with § 2-2-109.

SECTION 5. This act takes effect July 1, 2025, the public welfare requiring it.